

Raghubir v. Dakshinanchal Vidyut Vitran Nigam Ltd.

High Court of Judicature at Allahabad · Division Bench · 20 May 2014 · Writ-C No. 27993 of 2014 · **Writ disposed; petitioner relegated to Clause 6.5.**

HEADNOTE

A writ challenging an electricity bill on disputed questions of fact is not the proper forum. The consumer may avail the remedy under Clause 6.5 of the Uttar Pradesh Electricity Supply Code, 2005.

FACTUAL SUMMARY

Raghubir challenged a 25 March 2014 electricity bill issued by the Executive Engineer of Dakshinanchal Vidyut Vitran Nigam Ltd., Agra, by a writ petition in the Allahabad High Court. The licensee raised a preliminary objection that the billing dispute could be more effectively decided under Clause 6.5 of the Uttar Pradesh Electricity Supply Code, 2005. Counsel for both sides were heard. The Court treated the challenge as raising disputed questions of fact against the impugned bill.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

billing dispute — writ vs Clause 6.5

HOLDING

Where a writ petition disputes an electricity bill and raises disputed questions of fact, those questions are better decided by the competent authority under Clause 6.5 of the Uttar Pradesh Electricity Supply Code, 2005. The writ is disposed of with liberty to the petitioner to avail that remedy. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — CORRECTNESS OF THE 25 MARCH 2014 ELECTRICITY BILL

Merits left to the Clause 6.5 authority; the writ was not decided on the bill. ¶ 1